

Pinky vs Manoj Kumar on 14 November, 2019

Author: Sharad Kumar Sharma

Bench: Sharad Kumar Sharma

CRLR No. 616 of 2019
Hon'ble Sharad Kumar Sharma, J.

Mr. Pankaj Kumar Sharma, Advocate for the revisionist.

Mr. P.S. Bohra, A.G.A. for the State of Uttarakhand.

This Revision has been filed by the revisionist challenging the order dated 19th July, 2019, as rendered in Case No. 39 of 2018, Pinky Vs. Manoj Kumar, which according to the Revision, was the proceeding initiating under Section 125 of the Cr.P.C. and as a consequence of the impugned order, a maintenance of Rs.5,000/-, each has been awarded to the respondent/wife and the daughter. At the time, when the first Criminal Revision was preferred, being Criminal Revision No. 496 of 2019, the same was dismissed as withdrawn on 28.08.2019, with a liberty open to the revisionist to file an appropriate application and to get the necessary correction made because the impugned order, which was under challenge in the said Revision showed that it was passed in a proceeding under Section 24 of the Hindu Marriage Act. If that be so, then the Criminal Revision would not be maintainable against the said impugned order dated 19th July, 2019 showed to be passed on application under Section 24 of Hindu Marriage Act. However, subsequently, when the present Revision was filed by the revisionist on 16th September, 2019, yet again, a challenge was given to the impugned order dated 19th July, 2019. However, the certified copy of the impugned order showed that the title head of the impugned order, it contained a cutting and Section 24 of the Hindu Marriage Act was scored off without any endorsement of Court's order.

Learned counsel for the revisionist has informed that after the order passed in the earlier revision dismissing the revision as withdrawn on 28.08.2019, he has filed an application on 5th September, 2019 before the Court below in the said Misc. Case on which the order was passed converting the order dated 19th July, 2019, as to be an order passed under Section 125 and not under Section 24 of the Hindu Marriage Act.

A question was raised as to what was the paper number assigned in the proceedings before the Court below to the application filed on 5th September, 2019, no plausible answer was given and, subsequently, a question was raised was to what is the date of the order passed on the application dated 5th September, 2019, directing him to make correction in the title head of the impugned order showing it to be an order passed under Section 125 Cr.P.C. instead of Section 24 of the Hindu Marriage Act.

When the answer given by the revisionist was not found satisfactory, this Court passed a judicial order directing the Court below to give an explanation as to what order had on the application dated

5th September, 2019 and what paper number was assigned to it.

Since, the explanation was not forthcoming, the Court has cautioned the officer and called upon the report within the stipulated time frame and subsequent thereto on 1st November, 2019, the Family Judge, Laksar had submitted her explanation, wherein, the following explanations have been extended:-

1. That no such application has been filed by revisionist or his counsel.
2. No such application finds place on record of the miscellaneous case pending before the Court below.
3. No such order has been passed on a judicial side converting the title head of the impugned order for Section 24 to Section 125 Cr.P.C.
4. It was submitted in the explanation that the tempering and cutting off has been made by someone and not in pursuance to the order passed by this Court in the certified copy.
5. She has submitted that the interpolation and erasing in order said to have been passed on the application dated 5th September, 2019 is not within the knowledge of the officer.

In that view of the matter, on the basis of the said report, this Court passed an order on 4th November, 2019, calling upon the revisionist and the counsel to appear in person. They are present today. The counsel, who had conducted the matter before the Court below is Mr. Rajveer Singh. He admits the fact that the application was filed on 5th September, 2019, but later, he submitted that the same was returned.

If that be so, then it is quite apparent that there was no order passed as such on the application dated 5th September, 2019, which has been otherwise pleaded in the Revision preferred by the revisionist.

In these circumstances, the District Judge Haridwar is directed to conduct an inquiry as to how the interpolation has been made in the certified copy of the impugned order under challenge before this Court in the instant Revision and submit his report within a period of three weeks from today for an appropriate action to be taken accordingly.

(Sharad Kumar Sharma, J.) Dated 14.11.2019 Shiv